

# SMITH v. KING AND CARTWRIGHT

21UD13416

## PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This is a limited jurisdiction, residential UD action. This is one of five actions involving these same parties. At issue is whether Tracy Smith has the superior possessory interest in 5348 Messing Road, Valley Springs CA. A brief chronology is helpful:

*On 12/02/19, Shane Cartwright (as landlord and record owner) entered into a written lease agreement with Tracy Smith (as tenant) for the referenced property – which consists of two homes situated on a 10-acre parcel. The lease was to expire on 01/01/22. Smith agreed to pay \$2,800/month in rent for use of the whole premises (including both homes), though Cartwright noted additional time was needed “to relocate the occupant” of the front, older house. Critical to the current disputes, Smith paid an additional \$20,000 to secure an option to purchase the subject property for \$625,000. So long as Smith was not in default as a tenant, he could exercise this option any time prior to 01/01/22.*

*According to Smith, within one year of his tenancy, he secured the necessary loan to purchase the property, and gave notice of his intent to exercise his option. This set a number of unpleasant events in motion, beginning with Cartwright's 12/03/20 unannounced site inspection of the premises. (According to Cartwright, Smith was harming the premises and conducting an unauthorized marijuana business on-site.) The parties met at the interior gate. This led to harsh words, threats, law enforcement involvement, and the filing of the first civil action (20CH45068). That event led Cartwright to commence the next civil action (21UD13373) based upon evidence that Smith had made material unauthorized alterations to the property. This then led to Smith trying to evict the occupants of the front house (Deborah Cartwright and others), and the filing of another action (21UD13416). Smith made efforts to post notice on the front house, prompting those tenants to bring the fourth action (21CH45278).*

In this – the second Unlawful Detainer action – Smith caused to be served upon the tenants Wilma King and Deborah Cartwright (mother and daughter) a Request to Admit thirty-five (35) matters. The proof of service attached to the RFAs indicates service on both by regular U.S. Mail on 02/15/22. Counsel for plaintiff states (albeit not under penalty of perjury) that neither tenant has provided a response to date. While counsel indicates that responses were “due no later than 03/28/22,” they were actually due much sooner. (See CCP §2033.250(b).) Nevertheless, it does appear that defendants are in violation of their discovery obligations.

In the ordinary course of events, granting these motions would be routine and perfunctory. However, given the history of hostilities, the expansive nature of the RFAs subject to the order to deem admitted, and the uncertainty of their application in other cases given the order of relation, this **Court requires the parties to personally appear** at the hearing to discuss the status of discovery and any proposed resolution of the cases.

# **CROCKER v. CALAVERAS COUNTY**

**21CV45343**

## **DEMURRER TO PETITION**

This is a civil action for breach of an alleged contract. Plaintiff has commenced three, nearly-identical civil actions here in this Court, as follows:

- 21CV45342: petition to confirm alleged arbitration award against Calaveras County Health and Human Service – Child Protective Services (using Judicial Council form)
- 21CV45343: breach of contract against Calaveras County Health and Human Service – Child Protective Services for not honoring an alleged agreement to reverse course in 21JD6338 and/or submit the juvenile dependency dispute to arbitration
- 21CV45540: petition to confirm alleged arbitration award against Calaveras County Health and Human Service – Child Protective Services (not using Judicial Council form)

On 04/15/22, this Court entered an order sustaining without leave to amend the County's demurrer to the respective operative pleading in both 21CV45342 and 21CV45540. This Court found that the absence of an arbitration agreement, a serious concern regarding the authenticity of the alleged award, and the juvenile court's exclusivity rendered the petitions incapable of bona fide cure through amendment. Petitioner has appealed those orders (see C096133).

In this remaining action, the County contends that plaintiff's breach of contract claim is both uncertain, and as alleged fails to state a cause of action.

A demurrer for uncertainty lies if the essential facts upon which a determination of the controversy depends are not easy to discern from the allegations made. (See *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5<sup>th</sup> 677, 695; *Chen v. Berenjian* (2019) 33 Cal.App.5<sup>th</sup> 811, 822.)

A demurrer for failure to state a cause of action is sustainable if it appears that plaintiff is not entitled to any relief. In other words, a general demurrer for failure to state will not succeed if the pleading states, however inartfully, facts disclosing some right to relief. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5<sup>th</sup> 709, 714; *Wittenberg v. Bornstein* (2020) 51 Cal.App.5<sup>th</sup> 556, 566; *Weimer v. Nationstar Mortgage, LLC* (2020) 47 Cal.App.5<sup>th</sup> 341, 352.)